

Second, the complaint presently does not sufficiently allege facts that Plaintiff engaged in tortious conduct that involved oppression, fraud or malice as required. See Compl. 3rd COA (“Defendant ROBERT THOMAS, the owner of the dog, knew or should have known about the dog’s propensity to bite/attack and still allowed the dog to come in to contact with others unattended such that Defendants are subject to punitive damages as set forth in California Civil Code § 3294.”).

“The rules governing the right to amend a defective pleading are settled. Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” *Velez v. Smith* (2006) 142 Cal.App.4th 1154, 1174 (citations and quotations omitted). However, “[t]he burden is on plaintiffs to prove that amendment could cure the defect.” *King v. CompPartners, Inc.* (2018) 5 Cal.5th 1039, 1050. “[A] plaintiff must submit a proposed amended complaint or, ..., enumerate the facts and demonstrate how those facts establish a cause of action [or request for relief].” *Salazar v. Target Corporation* (2022) 83 Cal.App.5th 571, 577. Plaintiff did not oppose the motion and has made no showing how the defects are reasonably capable of cure. On the record presented, leave to amend is denied.

6. CU0000090 Matthew Palleschi, et al. v. Daniel Fraiman Construction, Inc., et al

Appearances are required in connection with the motion for a trial continuance by Defendant CG West Flooring, dba Artisan Hardwood Floors, Inc.